Louisa County Water Authority
Board of Directors
July 10, 2024

MEMBERS PRESENT: Mr. Judson Foster, Chairman; Mr. Douglas Smith, Vice-Chairman; Mr. Bob Hardy; Mr. Tom Filer; Mr. Byron Wilson

MEMBERS ABSENT: Mr. David Kies, Mr. Robert Morgan

OTHERS PRESENT: Ms. Pam Baughman, General Manager; Mr. Manning Woodward, Louisa County Water Authority Board of Supervisors; Ms. Patricia Smith, Louisa County Attorney (*arrived at 6:15 pm*); Mr. Zanes Talley, Whiteford, Taylor & Preston LLP (*arrived at 6:15 pm*)

A. Call to Order

Chairman Foster called the meeting to order at 6:07 pm.

1. ADOPTION OF THE AGENDA

Chairman Foster asked if there were any changes or additions to the agenda. The General Manager asked to add two items: 1) Louisa Regional WWTP SCADA PC repair/replacement, and 2) Northeast Creek Water Treatment Plant valve replacement. Mr. Smith made a motion to adopt the agenda as amended. The motion was seconded by Mr. Filer and carried 5-0 among the members present.

B. Presentations

C. Citizen Information

D. Consent Agenda

2. APPROVAL OF THE MINUTES:

A. JUNE 12, 2024 – REGULAR BUSINESS MEETING
3. TREASURER'S REPORT:

A. O & M REPORT / CAPITAL REVENUE & EXPENDITURE REPORT – JUNE 2024
B. APPROVAL OF DISBURSEMENTS – JUNE 2024
C. CONSTRUCTION FUND – JUNE 2024

The Board reviewed the Consent Agenda and Treasurer's Report. Mr. Hardy expressed his concern regarding the Cash Flow Report and asked for some changes. Additionally, Mr. Hardy asked for the titles to be updated on the budget information provided.

Upon completion of the review, Mr. Hardy made a motion to approve the Consent Agenda and Treasurer's Report with edits. The motion was seconded by Mr. Smith and carried 5-0 among the members present.

E. Old Business

4. UPDATE – NEW BRIDGE WWTP

A. DEQ APPROVAL TO MOVE FORWARD WITH PILOT TEST FOR EarthTec®

EarthTec® was delivered on July 3, 2024, and staff began the chemical addition to kill the algae the same day. The addition of FLOWPAM began in June. TSS sample results were reduced by more than half in June (From 154 mg/L down to 68.6 mg/L and on July 1, 2024, down to 38.3 mg/L). Staff believe the TSS sample results could be within the normal range for July. There were no BOD or ammonia violations for June or July.

B. DEQ RECON INSPECTION JULY 1, 2024

The Department of Environmental Quality conducted a Recon Inspection at the New Bridge WWTP on July 1, 2024. They were surprised to arrive onsite to find the gate opened and staff working. They mentioned three items that they wanted to see addressed, 1) grease; 2) some foaming issues (we believe is being caused by the algae); and 3) three small holes in the liner. Staff has repaired the holes in the liner and the EarthTec® chemical addition has begun. Grease has been an ongoing issue with the restaurants. The restaurants have been informed of the results of the Recon Inspection and advised to get the grease under control or incur fines and penalties under our Grease Trap Policy.

The Board directed the General Manager to enforce the Grease Trap Policy since all efforts to bring the New Bridge customers into compliance have not been effective. Additionally, the Board directed the General Manager to contact Dominion Energy to inform them of the chemical additions at the New Bridge WWTP.

5. LEAD SERVICE LINE INVENTORY

Five sites to complete. Three with access agreements and two without access agreements. We are checking the regulation to see if alternate sites can be identified and inventoried for the two sites without access agreements. It is the General Manager's understanding that sites you do not receive access to must be identified as "unknown" and the Virginia Department of Health – Office of Drinking Water then consider them lead service lines.

6. APPROVED BUDGETS

A. SUMMARY STATEMENT OF INCOME
B. DETAILED STATEMENT OF INCOME
C. SUMMARY STATEMENT OF EXPENSES
D. DETAILED STATEMENT OF EXPENSES

The Board was provided an updated Statements of Income and Expenses, which reflect the adopted 20% increase in water and sewer rates and the changes with the insurance renewal for FY2025.

E. DRAFT 5 YEAR PLAN FOR CAPITAL PROJECTS

The Board was provided a draft 5 Year Plan for Capital Projects. The dollar amount of projects far exceeds the projected amount of Capital Revenues expected for FY2025. Staff have been asked to prioritize the projects and to request proposals for each project. To move forward with some of the critical projects, funding requests from the County or some short-term financing may need to be considered.

The Board discussed the right-of-way clearing budget request from the County. The General Manager showed a video of two air relief valves on the Ferncliff force main and Zion Crossroads WWTP effluent line, in close proximity, that failed at the same time causing a cross contamination of sewage being drawn into the effluent line. These simultaneous failures caused several E.coli violations before being found. The General Manager stated that the Authority needs the equipment to maintain the right-of-ways to allow for staff access to check on the infrastructure for these types of failures.

The Board expressed concern that the equipment request was for new right-of-way clearing and not current active lines. The General Manager stated that a proposal was presented to them for approval to reclaim the force main / effluent line but was denied while negotiations were being attempted to join the right-of-way clearing contract Central Virginia Electric Cooperative uses to maintains their right-of-ways. After several failed attempts to join the Central Virginia Electric Cooperative right-of-way clearing contract, the Board authorized the request for equipment enabling staff to maintain the right-of-ways.

The Board asked for equipment quotes as well as right-of-way clearing quotes for the August 14, 2024 meeting. Additionally, the possibility of an appropriation request from the County of Louisa was discussed to cover all of the equipment or maintenance costs.

Upon completion of the discussion, Mr. Filer made a motion to authorize the right-of-way clearing for the Ferncliff force main / Zion Crossroads WWTP effluent line at a cost not to exceed $25,000. The motion was seconded by Mr. Hardy and carried 5-0 among the members present.

Mr. Hardy suggested obtaining a price from a person along Rt.22 that does clearing and sells firewood.

7. LOUISA COUNTY – CIP FUNDING REQUEST

A. FUNDING REQUEST FOR NORTHEAST CREEK WATER TREATMENT PLANT SLUDGE-VAC SYSTEM
B. FUNDING REQUEST FOR JRWA RIGHT-OF-WAY MAINTENANCE

The Board reviewed the funding requests submitted to the County of Louisa. The funding requests will be on the August 5, 2024 Board of Supervisors meeting agenda for consideration.

8. NORTHEAST CREEK SEDIMENTATION BASIN IMPROVEMETNS (SLUDGE VAC SYSTEM)

The contract for the Northeast Creek Water Treatment Plant Sedimentation Basin Improvements project has been completely executed and the pre-construction meeting held on June 20, 2024. At the pre-construction meeting, the contractor indicated that the equipment would be ordered

with an anticipated delivery date of December 2024. While the equipment is being manufactured and shipped, the site work will be underway. The contractor was reminded of the narrow timeline for this project at the pre-construction meeting. Authority staff area meeting with WACO on Thursday, July 11, 2024 to finalize some details for the Sludge-Vac System upgrade at the Northeast Creek Water Treatment Plant.

F. New Business

9. Drought Conditions

A. DEQ DROUGHT WATCH ADVISORY
B. BOARD OF SUPERVISORS RESOLUTION
C. DRAFT PRESS RELEASE
D. ANNUAL WATER CONSERVATION TIPS BROCHURE

The Board reviewed the DEQ Drought Watch Advisory, Board of Supervisors Resolution, draft Press Release, and annual Water Conservation Tips brochure. Localities have been advised to begin preparation for worsening conditions if they occur. The finalized Press Release and annual Water Conservation Tips brochure will be mailed to customers with the July water / sewer bills and on our website. The County of Louisa has already posted on their website and a resident of Spring Creek has posted on the neighborhood website.

The General Manager told the Board that worsening conditions lead to the decision to impose mandatory restrictions on water use, as well as the need to spread the word as quickly as possible before the weekend. The General Manager surmised that this approach was the quickest way to stabilize operations heading into the week of July 15, 2024.

10. Northeast Creek Water Treatment Plant – Chlorination System Upgrade

Since May, the water treatment plant staff have made three repairs to the chlorine system. The repairs were to stop chlorine leaks. Upgrading the chlorine equipment is critical to the safety of the staff and critical for providing disinfection to the potable water treated at the Northeast Creek Water Treatment Plant. The project is on the CIP listing. An itemized quote in the agenda packet was reviewed by the Board.

Upon completion of the review, Mr. Filer made a motion to proceed with the chlorine equipment upgrade at a cost of $42,260.51.

Mr. Filer amended his motion to proceed with the chlorine equipment upgrade at a cost not to exceed $50,000. The motion was seconded by Mr. Wilson and carried 5-0 among the members present.

G. Reports

H. General Manager's Report

● After the Ceriodaphnia and green wastewater events earlier this year at the Zion Crossroads WWTP, the UV system required several repairs to ensure disinfection levels were achieved. When the repairs were completed and violations still occurring, staff began to look for other sources of E. coli. Zion Crossroads force main from Ferncliff and effluent line from the Zion Crossroads to the South Anna both have air relief valves just off Rock Quarry Road, located close to each other. Both air relief valves failed at the same time. Sewage came out of the failed force main air relief valve and when the effluent pumps at the Zion Crossroads WWTP turned off, it created a vacuum pulling sewage into the effluent line. Three air relief valves were ordered – two for replacements and the third for inventory. The air release valves have been received and will be installed as soon as scheduling allows.

Due to overheating, the UV System went down overnight July 9 -10, 2024. Staff have gotten it running again today and are working to add some coverage to prevent overheating in the future.

● **June levels**: At the end of June 2024, the static well levels were down 98.7 feet from the end of May 2024 levels. From June 2023 to June 2024, the well levels are down 205.2 feet.

As of July 1, 2024, the Department of Environmental Quality Drought website is indicating normal conditions exist for precipitation, groundwater, reservoir levels. Stream flow is under a drought watch.

As of June 24, 2026, the Department of Environmental Quality was declared a Drought Watch Advisory. Localities have been advised to prepare for worsening conditions.

● Nellie Clatterbuck resigned her position as Customer Relations Coordinator on June 21, 2024.

● Cody Langridge, Stephen Estes, and Nate Dwyer have been working long hours to keep up with demand while Bryan Balsley has been on leave. Bryan is due back July 11, 2024.

● Nate Dwyer was a Louisa County High School Envirothon student.

● No update for the James River Water Project. The monthly meeting was not held due to vacations of JRWA Board members. There was a ribbon cutting ceremony on July 3, 2024.

● Ms. Centofanti sent an email expressing her concerns with the online payment fees. The fees do not come to the Authority they go to the online payment services provider.

● The current past-due listing is down to $6,754.91 from the past-due listing provided in the General Manager's Report, which reported the past-due balance of $10,091.50.

● For the Northeast Creek Water Treatment Plant, the communication system upgrade is almost complete. Plant staff can start the IDA Well and shut it off remotely. Water Plant staff and maintenance staff are working to install some valves and the electrician will need to tie the valves into the electrical then the project will be complete.

● For the Louisa Regional Wastewater Treatment Plant, the septic receiving station has been pumped down and the pump retrieved. Parts from the spare pump have been used to get the pumps going, however the seals needed to be replaced. They should arrive today (July 10, 2024). Replacement parts for the spare pump have been ordered and should be received in three – four weeks. The septic receiving station should be back in service by the end of the week.

● Audit preparation work has begun in earnest.

● The Town of Louisa meters are due to be shipped on July 26, 2024.

● The General Manager's email and phone were hacked, but Mary Johnson and the Louisa County IT Department were able to stop the process and are monitoring for any unauthorized additional attempts to gain access.

● The General Manager has been invited to participate in the Department of Environmental Quality workgroup to discuss the Virginia Water Protection Regulation exclusion – often referred to as grandfathered withdrawals.

I. Committees

A. PERSONNEL COMMITTEE

Danielle has been working with an attorney in Dale Mullen's firm to ensure the On-Call (Fit for Duty) Policy meets all labor laws. The Cell Phone Policy, Authority Vehicle Policy and the On-Call (Fit-for-Duty) Policy will be on the August agenda for approval.

B. 2X2 MEETING

The General Manager reached out to Christian Goodwin, County Administrator to schedule another 2X2 meeting.

J. Short Notice Items

A) LOUISA REGIOANL WWTP SCADA PC REPAIR/REPLACEMENT

The Board discussed the repair / replacement of the existing PC for the SCADA system at the Louisa Regional Wastewater Treatment Plant. Three options were provided; 1) replace the PC with a new PC; 2) repair the current PC; 3) replace the PC with a new PC and repair the current PC for a backup. The General Manager recommended option #3.

After the discussion, Mr. Wilson made a motion to proceed with option #3, the replacement of the current PC with a new one and repair the old PC for a backup. The motion was seconded by Mr. Filer and carried 5-0 among the members present.

B) NORTHEAST CREEK WATER TREATMENT PLANT VALVE REPLACEMENT

The Board reviewed the proposal to replace five valves at the Northeast Creek Water Treatment Plant. The General Manager reported that several of the valves are leaking, and one needed an emergency repair. The emergency repair was a temporary solution until pricing for replacement valves could be obtained.

Upon completion of the review and discussion, Mr. Filer made a motion to approve the replacement of the five valves in the Northeast Creek Water Treatment Plant at a cost of $46,157.

Mr. Filer amended his motion to approve the replacement of the five valves in the Northeast Creek Water Treatment Plant at a cost not to exceed $55,000 and carried 5-0 among the members present.

K. Closed Session:

A. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(7) CONSULTATION WITH LEGAL COUNSEL AND BRIEFINGS BY STAFF MEMBERS OR CONSULTANTS PERTAINING TO ACTUAL OR PROBABLE LITIGATION, WHERE SUCH CONSULTATION OR BRIEFING IN OPEN MEETING WOULD ADVERSELY AFFECT THE NEGOTIATING OR LITIGATING POSTURE OF THE PUBLIC BODY.

Mr. Filer made a motion to close the regular open meeting and immediately reconvene in closed session. The motion was seconded by Mr. Hardy and carried 5-0 among the members present.

RETURN TO OPEN MEETING:

Chairman Foster closed the closed session and immediately reconvened in regular open meeting at 7:49 pm.

CERTIFY:

Mr. Foster read the following statement prior to the vote to certify the closed session.

"Pam will now poll members to certify that, to the best of your knowledge, only public business matters lawfully exempted from the open meeting requirements under the Virginia Freedom of Information Act, and as identified in the motion for which the closed meeting was convened, were discussed, and considered by the Board. If any member believes that the Board varied from the purpose stated for the closed meeting, please state so and the reason prior to casting the vote." A roll call vote was requested with the following results:

Mr. Foster	YES
Mr. Smith	YES
Mr. Filer	YES
Mr. Hardy	YES
Mr. Kies	ABSENT
Mr. Morgan	ABSENT
Mr. Wilson	YES

The motion was carried 5-0 among the members present.

Next meeting date - The next business meeting is scheduled for August 14, 2024.

L. Adjournment

THERE BEING NO FURTHER BUSINESS, Mr. Hardy made a motion to adjourn at 7:50 pm. The motion was seconded by Mr. Smith and carried 5-0 among the members present.

BY ORDER OF:

Judson Foster
Chairman
LOUISA COUNTY WATER AUTHORITY